



Rate Rebate Act 1973

1973 CHAPTER 28

An Act to exclude payments of attendance allowances from calculations of gross income when assessing eligibility for rate rebates under the General Rate Act 1967 and (as respects Scotland) the Rating Act 1966.
[14th June 1973]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. At the end of paragraph 11 of Schedule 9 to the General Rate Act 1967 and (as respects Scotland) of section 7(3) of the Rating Act 1966 (which provide for certain income to be left out of account when calculating the reckonable income of an applicant for a rate rebate under those Acts) there shall be added the following—

“(c) any income by way of payments of any attendance allowance within the meaning of any regulations for the time being in force under the Family Income Supplements Act 1970.”

Exclusion of attendance allowance when calculating reckonable income for rate rebate.
1967 c. 9.
1966 c. 9.
1970 c. 55.

2.—(1) Section 1 of this Act shall have effect for the purpose of determining the right of any person to a rate rebate and the amount of rate rebate to which any person is entitled in relation to the rebate period beginning on 1st October 1973 and to each subsequent rebate period.

Application of section 1.

(2) Section 1 of this Act shall also have effect in relation to the current rebate period for the purpose of determining the right of any person to a rate rebate and the amount of rate rebate to which any person is entitled if, in either case, he makes an application for the rebate after the passing of this Act.

(3) A rebate application in respect of the current rebate period may be made after the passing of this Act by any person notwithstanding that he has made a rebate application in respect of that period which has either been granted, or refused, or has not been dealt with, before the passing of this Act, but where a second application is made in respect of that period, the rating authority, in determining the amount of rebate payable in respect of the later application, shall take into account the amount of rebate payable, if any, in respect of the earlier application.

1967 c. 9.

(4) Without prejudice to subsection (4) of section 49 of the General Rate Act 1967 (rebate applications to be made before the end of a rebate period) subsection (2) of that section (reduction of rebates in case of delayed applications) shall not apply in relation to any application made after the passing of this Act in respect of the current rebate period by a person whose reckonable income for the purposes of that application is reduced by reason of this Act.

(5) Except in so far as the context otherwise requires, expressions used in this section and in the General Rate Act 1967 have the same meanings in this section as in that Act, and "the current rebate period" means the rebate period beginning on 1st April 1973.

(6) In the application of this section to Scotland—

1966 c. 9.

- (a) for the reference to the General Rate Act 1967 there shall be substituted a reference to the Rating Act 1966;
- (b) for the reference to section 49 of the said Act of 1967 there shall be substituted a reference to section 5 of the said Act of 1966;
- (c) for the references to 1st October and 1st April there shall be substituted the references relative to the said dates respectively contained in section 5(10)(a) of the said Act of 1966.

Expenses.

3. There shall be paid out of money provided by Parliament any increase attributable to this Act in the sums payable out of money so provided under any other Act.

Citation.

4. This Act may be cited as the Rate Rebate Act 1973; and this Act, in its application to England and Wales, may be cited together with the General Rate Acts 1967 and 1970 as the General Rate Acts 1967 to 1973.